STATE INITIATIVES: INGREDIENTS, GRAS, and UPF



THIRTY-EIGHTH ANNUAL FOOD LABEL CONFERENCE

Dan Colegrove
Food Ingredient Safety Coalition

WHY WE LOVE STATE LEGISLATURES



INDEPENDENCE: LEGISLATURES CAN AND DO ENACT STATE LAWS REGULATING FOOD AND BEVERAGES

SPEED: ALMOST ALL STATE LEGISLATURES MEET ANNUALLY; SESSIONS RUN FROM 60 DAYS TO TWO -YEARS

ACTION: THOUSANDS OF BILLS ARE FILED; THEY CAN BE CONSIDERED, AMENDED, AND PASSED QUICKLY

ABILITY: FEDERAL INACTION EMBOLDENS STATES TO ACT

WHY WE LOVE STATE LAW MAKERS



PASSION: THEIR OPPORTUNITY TO BRING IDEAS TO LIFE

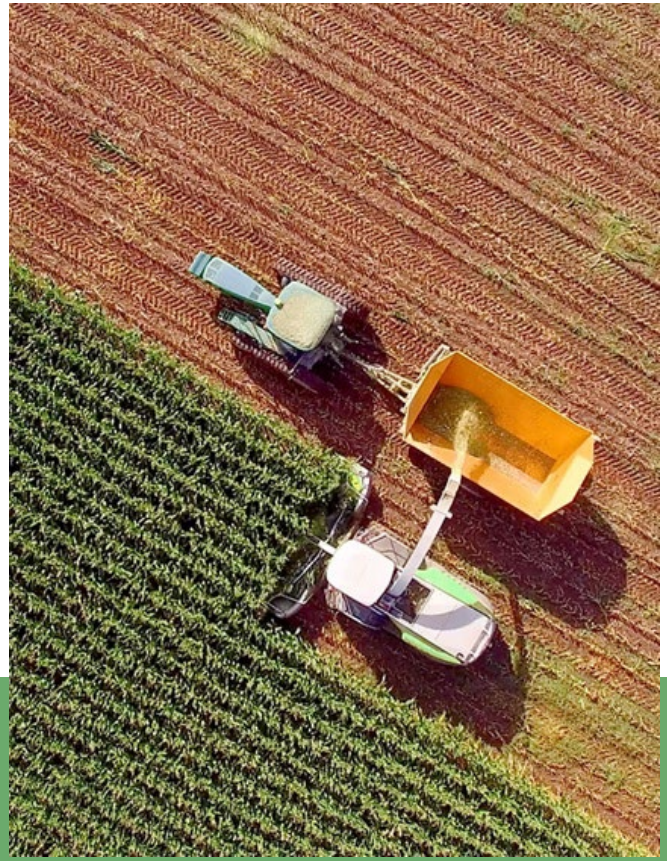
REACTIVE: THEY BORROW IDEAS FROM OTHER STATES

INNOVATIVE: THEY ARE NOT AFRAID TO SUGGEST NEW OR UNCONVENTIONAL APPROACHES

ACCESSIBLE: THEY ARE EASY TO FIND AND TALK WITH

STATE LAWS CAN IMPACT THE ENTIRE FOOD CHAIN

- Agricultural practices including pesticides, land and water usage
- Workplace and employment rules
- Processed foods
- Labels and warnings
- Packaging and recycled content mandates
- Retail restrictions



OUR INDUSTRIES ARE HIGHLY REGULATED

From field to table

GROWING CONCERNS ABOUT OUR FOOD

In the past few years, the food and beverage industry has lost faith with large areas of the public. There are many reasons; perceived federal inaction, mistrust of scientific institutions, social media influencers, agenda-driven organizations, MAHA popularity, a slow-to-respond industry.



THE FOOD INDUSTRY IS NO LONGER TRUSTED

Long a fond part of American life, we have become a pariah like Big Tobacco

2023 BILLS

- Three bills filed in two states
- One new law
- Only a small number of targeted ingredients

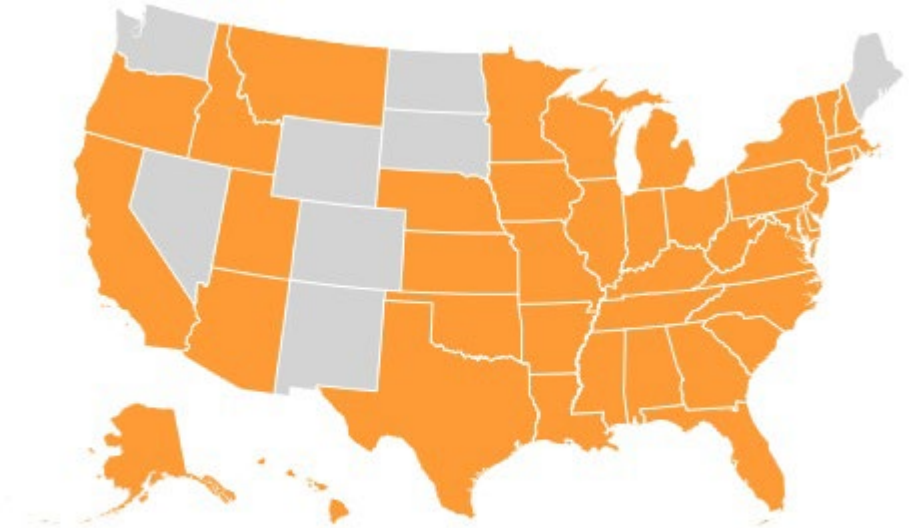


CALIFORNIA WAS THE FIRST TO ACT

Following intense debate, Assembly Bill 418 was enacted. It bans products containing any of four ingredients beginning in 2027

2025 – 2026 BILLS

- Over 140 bills filed in 42 states
- New laws in thirteen states



VOLUME INCREASED LIKE ALMOST NOTHING BEFORE

The intensity and variety of legislation exceeded our predictions

LEGISLATION FALLS INTO CATEGORIES



SCHOOL FOOD RESTRICTIONS

STATE GRAS REPORTING

ULTRAPROCESSED FOOD DEFINITIONS

STATEWIDE BANS & LABELING

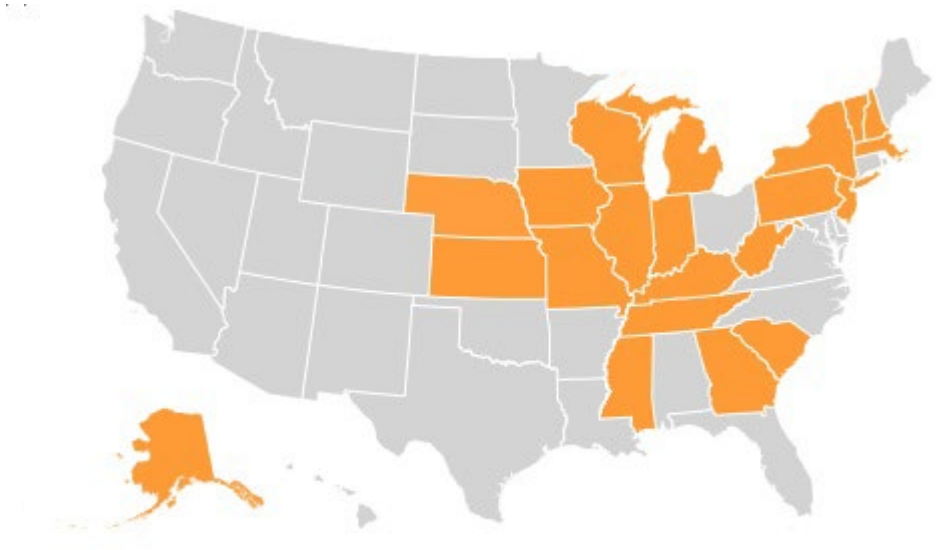
OVER 100 INGREDIENT TARGETS INCLUDING



- All synthetic colors
- Potassium bromate
- Titanium dioxide
- Sweeteners including aspartame
- Propylparaben
- BHA & BHT
- Vanillin

- High fructose corn syrup
- Seed oils including soy & safflower
- Brominated flour
- Diacetyl
- Trans fats
- Brominated vegetable oil
- Carrageenan

SCHOOL FOODS & BEVERAGES



- New laws in Iowa, Nebraska, Tennessee
- Proposed bills include most or all FD&C colors
- Potassium bromate & propylparaben are often referenced
- School nutritionists have become concerned and active

THIS IS A CHALLENGE

It is difficult for lawmakers to appear unsympathetic to children’s health

STATE GRAS BILLS

- Active debates in California , New Jersey, New York
- Create huge new bureaucracies
- Increase consumer and business costs



THE “GRAS LOOPHOLE ”

A narrative is being formed that food companies use an outdated system to push harmful chemicals to consumers

ULTRAPROCESSED FOOD

- Definitions can vary
- California is attempting to define UPF
- States can enact their own definition

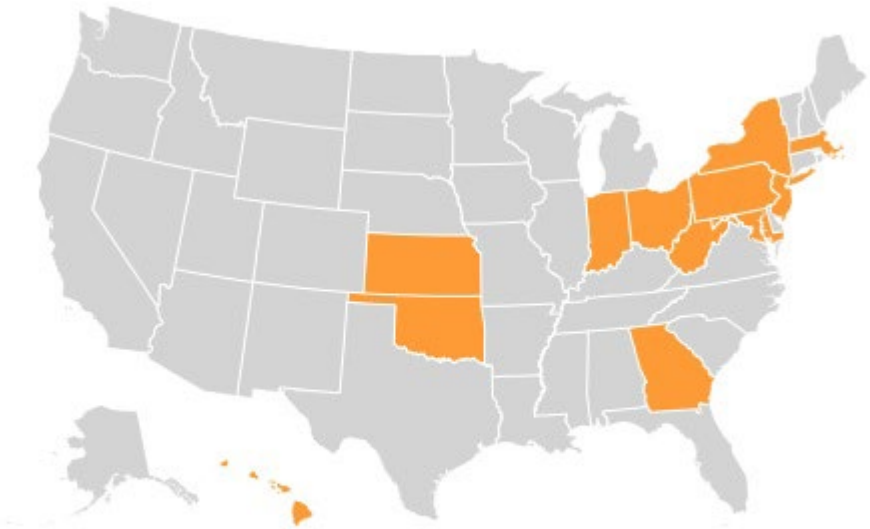


LACK OF A DEFINITION CREATES PROBLEMS

Without federal direction, states can and will continue attempts to define UPF on their own terms

STATE BANS

- States can ban the sale of products
- West Virginia litigation shows the challenges
- They will continue to continue to be filed and evolve



AN EVERCHANGING LIST

When substances are called out in social media, even when relying on bad science, they will be targeted for bans

LABELING LEGISLATION

- Texas litigation has slowed label bills
- They continue to show up
- California Non-UPF plan is moving ahead



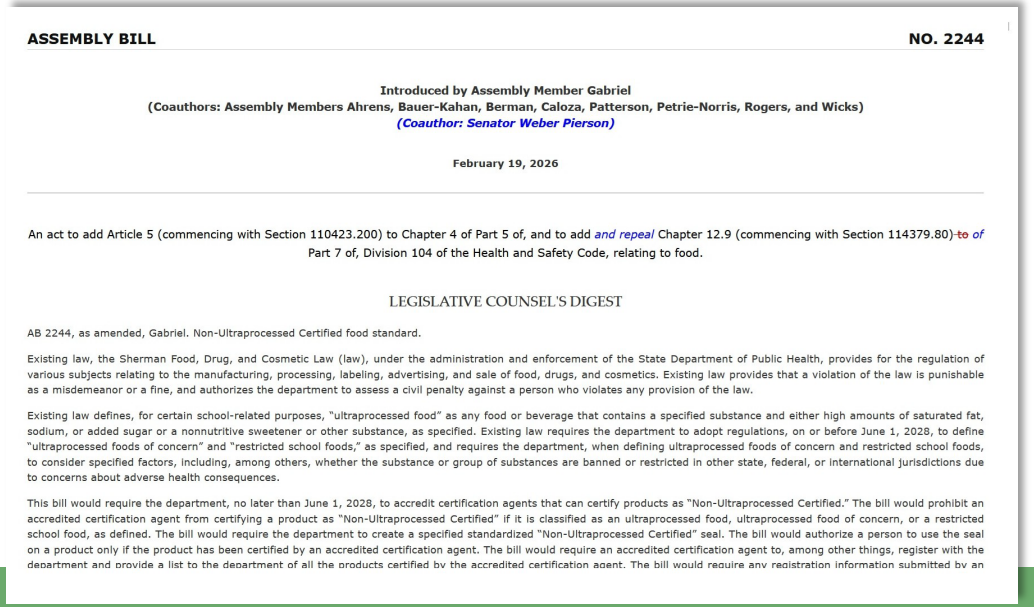
A SLIGHT PAUSE IN LABEL BILLS

The California legislation may inspire other states or federal action

FOCUS:
CALIFORNIA AB 2244

- State will develop a voluntary certification program
- “Non-Ultraprocessed Certified” seal
- UPF definition will correspond to previous California law
- Large retailers must make good faith efforts to clearly identify items

.



ASSEMBLY BILL **NO. 2244**

Introduced by Assembly Member Gabriel
(Coauthors: Assembly Members Ahrens, Bauer-Kahan, Berman, Caloza, Patterson, Petrie-Norris, Rogers, and Wicks)
(Coauthor: Senator Weber Pierson)

February 19, 2026

An act to add Article 5 (commencing with Section 110423.200) to Chapter 4 of Part 5 of, and to add *and repeal* Chapter 12.9 (commencing with Section 114379.80) ~~to~~ *of* Part 7 of, Division 104 of the Health and Safety Code, relating to food.

LEGISLATIVE COUNSEL'S DIGEST

AB 2244, as amended, Gabriel. Non-Ultraprocessed Certified food standard.

Existing law, the Sherman Food, Drug, and Cosmetic Law (law), under the administration and enforcement of the State Department of Public Health, provides for the regulation of various subjects relating to the manufacturing, processing, labeling, advertising, and sale of food, drugs, and cosmetics. Existing law provides that a violation of the law is punishable as a misdemeanor or a fine, and authorizes the department to assess a civil penalty against a person who violates any provision of the law.

Existing law defines, for certain school-related purposes, “ultraprocessed food” as any food or beverage that contains a specified substance and either high amounts of saturated fat, sodium, or added sugar or a nonnutritive sweetener or other substance, as specified. Existing law requires the department to adopt regulations, on or before June 1, 2028, to define “ultraprocessed foods of concern” and “restricted school foods,” as specified, and requires the department, when defining ultraprocessed foods of concern and restricted school foods, to consider specified factors, including, among others, whether the substance or group of substances are banned or restricted in other state, federal, or international jurisdictions due to concerns about adverse health consequences.

This bill would require the department, no later than June 1, 2028, to accredit certification agents that can certify products as “Non-Ultraprocessed Certified.” The bill would prohibit an accredited certification agent from certifying a product as “Non-Ultraprocessed Certified” if it is classified as an ultraprocessed food, ultraprocessed food of concern, or a restricted school food, as defined. The bill would require the department to create a specified standardized “Non-Ultraprocessed Certified” seal. The bill would authorize a person to use the seal on a product only if the product has been certified by an accredited certification agent. The bill would require an accredited certification agent to, among other things, register with the department and provide a list to the department of all the products certified by the accredited certification agent. The bill would require any registration information submitted by an

CREATING A STATE SEAL OF APPROVAL

California legislators see this as trend influencing and hope it becomes a national standard

INACCURACIES & MISPERCEPTIONS PERSIST

Extensive efforts are made to share simple information about our safe food supply, yet we continue to hear false statements repeated as facts in legislative debates.

WE ARE LATE

THESE THINGS ARE BANNED IN EUROPE BUT NOT HERE

BIG FOOD

INDUSTRY EXPLOITS THE GRAS LOOPHOLE & ENGINEERS ADDICTIVE FOOD

IT IS DEADLY

THESE SUBSTANCES ARE KNOWN HEALTH RISKS

LOOKING AHEAD

While we have been largely successful in stopping misguided state legislation, the issues will return in 2027. Food safety is a compelling theme for many legislators and the first year after an election provides an opportunity for aggressive action. Perceived federal inaction could make for a challenging environment.



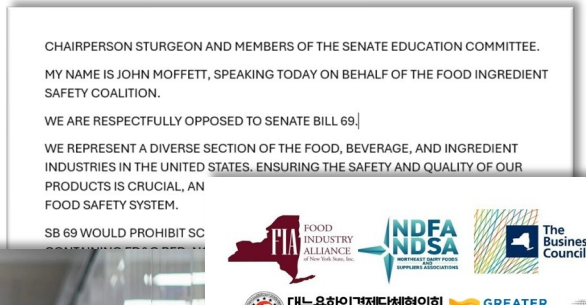
MUCH IS RIDING ON WASHINGTON

State ingredient restriction efforts will continue regardless, but inability of Congress and the Administration to address the issues will provide fuel

BUSINESS ENGAGEMENT

- In-committee & virtual testimony
- Provide written comments to legislators & regulators
- Engage local lobbyists
- Social & traditional media support
- Sponsor research
- Organize state coalitions
- Tools for grassroots activation
- Coordinate with allies & seek new alliances




CHAIRPERSON STURGEON AND MEMBERS OF THE SENATE EDUCATION COMMITTEE.

MY NAME IS JOHN MOFFETT, SPEAKING TODAY ON BEHALF OF THE FOOD INGREDIENT SAFETY COALITION.

WE ARE RESPECTFULLY OPPOSED TO SENATE BILL 69.

WE REPRESENT A DIVERSE SECTION OF THE FOOD, BEVERAGE, AND INGREDIENT INDUSTRIES IN THE UNITED STATES. ENSURING THE SAFETY AND QUALITY OF OUR PRODUCTS IS CRUCIAL, AN
FOOD SAFETY SYSTEM.

SB 69 WOULD PROHIBIT SC


April 26, 2026

Re: Opposition to Ingredient Restriction & GRAS Reporting Legislation, A1556/S1239

To the Honorable Members of the New York State Assembly:

The organizations represented here are opposed to Assembly Bill 1556 and Senate Bill 1239.

Collectively, we represent America's food, beverage, ingredient, agricultural, retail, and hospitality industries. Our members source, manufacture, distribute, and sell safe and wholesome products in New York and across the United States.

The United States has one of the safest, most efficient, and affordable food systems in the world, and we support a nationwide approach to food ingredient safety that is grounded in science and provides consistency for the food industry. We are opposed to this legislation as it would further a misguided patchwork of food and beverage regulation and impose huge, duplicative reporting requirements on

SUCCESS REQUIRES FOCUS

Organization, communication, rapid response, strategic plans; these are the keys to positive advocacy results

FOOD INGREDIENT SAFETY COALITION (FISC)

The Food Ingredient Safety Coalition (FISC) represents a broad section of America's food, beverage, and ingredient industries. Our members source, manufacture, distribute, and sell safe and wholesome products across the United States. The coalition is committed to maintaining the highest standards of safety and quality and supports a strong, science-based national food safety system.

WE ARE AN ACTION & RESOURCE HUB

FISC works closely with state and national partners to ensure the most effective, coordinated action

FISC POSITIONS



THE U.S. HAS THE SAFEST, MOST EFFICIENT & AFFORDABLE FOOD SYSTEM IN THE WORLD

A PATCHWORK OF STATE LAWS WILL BE COSTLY FOR BUSINESS & CONSUMERS

STATES LACK THE NEEDED EXPERTISE & RESOURCES

A UNIFIED, SCIENCE -BASED APPROACH IS CRITICAL

STATE INITIATIVES:
INGREDIENTS, GRAS, & UPF



FISCSAFE.ORG

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